

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index No.: 154565-2014

Date Purchased: May 14, 2014

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NAZARENA LORA,

VERIFIED AMENDED  
COMPLAINT

Plaintiff,

- against -

ERVIN LLOYD, "JOHN DOE #1", A NAMED MEANT TO  
BE FICTITIOUS, CITY OF NEW YORK, NEW YORK  
CITY POLICE DEPARTMENT," JOHN DOE # 2", A POLICE  
OFFICER WHOSE NAME IS MEANT TO BE  
FICTITIOUS, EMMANUEL DELACRURZ

Defendants.  
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Plaintiff, by her attorneys, Law Office of David Ascher, complaining of the Defendants,  
respectfully alleges, upon information and belief:

1. At all times herein mentioned, Plaintiff NAZARENA LORA was, and still is a resident of the County of Bronx, City and State of New York.
2. That on AUGUST 20, 2013, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

3. That on OCTOBER 28, 2013, pursuant to General Municipal Law 50(h), a hearing was held at the Office of the Comptroller or at the office of a designated agent.
4. That this action is being commenced within one year and ninety days of the accrual of the accident and within the time prescribed by law.
5. That all time herein mentioned, Defendant **ERVIN LLOYD** was, and still is a resident of the County of Kings, City and State of New York.
6. At all times herein mentioned, Defendant JOHN DOE #1, a name meant to be fictitious was a resident of the State of New York.
7. At all times hereinafter mentioned, Defendant EMMANUEL DELACRUZ, resided in the County of Queens, City and State of New York.
8. At all times herein mentioned, and on June 6, 2013, Defendant ERVIN LLOYD owned a motor vehicle bearing license plate number GFD7659 for the year 2013.
9. At all times herein mentioned, and on June 6, 2013, Defendant ERVIN LLOYD operated the aforesaid vehicle.
10. At all times hereinafter mentioned, Defendant ERVIN LLOYD controlled the aforesaid vehicle.
11. At all times hereinafter mentioned, Defendant ERVIN LLOYD gave permission to JOHN DOE #1 a name meant to be fictitious to operate the vehicle on or before June 6, 2013.
12. At all times hereinafter mentioned, Defendant ERVIN LLOYD gave consent to JOHN DOE #1 a name meant to be fictitious to operate the aforesaid vehicle on or before June 6, 2013.

13. At all times hereinafter mentioned, JOHN DOE #1 a name meant to be fictitious operated the vehicle with the consent of Defendant ERVIN LLOYD.

14. At all times hereinafter mentioned, JOHN DOE #1 a name meant to be fictitious operated the vehicle with the permission of Defendant ERVIN LLOYD.

15. At all times herein mentioned, and on June 6, 2013, Defendant JOHN DOE #1 operated the aforesaid motor vehicle with the permission of its owner, Defendant ERVIN LLOYD

16. At all times herein mentioned, and on June 6, 2013, Defendant ERVIN LLOYD maintained the aforesaid motor vehicle.

17. At all times herein mentioned, and on June 6, 2013, Defendant JOHN DOE #1 operated the aforesaid motor vehicle with the knowledge of its owner, Defendant ERVIN LLOYD

18. At all times herein mentioned, and on June 6, 2013, Defendant John Doe operated the aforesaid motor vehicle with the permission and consent of its owner, Defendant ERVIN LLOYD

19. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, was a municipal corporation.

20. That at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was an agency of the CITY OF NEW YORK.

21. That at all times hereinafter mentioned, Defendant JOHN DOE #2, a name meant to be fictitious was employed by the Defendant CITY OF NEW YORK.

22. That at all times hereinafter mentioned, Defendant JOHN DOE# 2, a name meant to be fictitious was employed by the New York City POLICE DEPARTMENT.

23. That at all times hereinafter mentioned, JOHN DOE#2, a name meant to be fictitious attempted to operate the aforesaid vehicle.

24. That at all times hereinafter mentioned, JOHN DOE# 2, a name meant to be fictitious operated the aforesaid vehicle.

25. That at all times hereinafter mentioned, JOHN DOE #2, a name meant to be fictitious intervened in the operation of the aforesaid vehicle.

26. That at all times hereinafter mentioned, JOHN DOE #2, a name meant to be fictitious attempted to control the aforesaid vehicle.

27. That at all times hereinafter mentioned, JOHN DOE#2, a name meant to be fictitious controlled the aforesaid vehicle.

28. That at all times hereinafter mentioned, JOHN DOE #2, a name meant to be fictitious intervened in the control of the aforesaid vehicle.

29. That at all times hereinafter mentioned, JOHN DOE #2, a name meant to be fictitious attempted to take control of the vehicle within the scope of his employment.

30. That at all times hereinafter mentioned, JOHN DOE #2, a name mean to be fictitious attempted to operate the vehicle within the scope of his employment.

31. That at all times hereinafter mentioned, JOHN DOE #2, a name mean to be fictitious intervened in the operation and control of the aforesaid vehicle within the scope of his employment with the Defendant CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT.

32. That at all times hereinafter mentioned, Defendant EMMANUEL DELCRUZ was employed by the Defendant CITY OF NEW YORK.

33. That at all times hereinafter mentioned, Defendant EMMANUEL DELCRUZ was employed by the Defendant NEW YORK CITY POLICE DEPARTMENT.

34. That at all times hereinafter mentioned, Defendant EMMANUEL DELACRUZ was a New York City Police officer.

35. That at all times hereinafter mentioned Defendant EMMANUEL DELACRUZ operated the aforesaid vehicle.

36. That at all times hereinafter mentioned Defendant EMMANUEL DELACRUZ attempted to operate the aforesaid vehicle.

37. That at all times hereinafter mentioned Defendant EMMANUEL DELACRUZ interfered in the operation of the aforesaid vehicle.

38. That at all times hereinafter mentioned Defendant EMMANUEL DELACRUZ controlled the aforesaid vehicle.

39. That at all times hereinafter mentioned Defendant EMMANUEL DELACRUZ attempted to control the aforesaid vehicle.

40. That at all times hereinafter mentioned, Defendant EMMANUEL DELACRUZ and JOHN DOE #1 operated the aforesaid vehicle.

41. That at all times hereinafter mentioned, Defendant EMMANUEL DELACRUZ and JOHN DOE #1 controlled the aforesaid vehicle.

42. That at all times hereinafter mentioned, Defendant EMMANUEL DELACRUZ intervened in the operation and control of the aforesaid vehicle.

43. That at all times hereinafter mentioned, Defendant EMMANUEL DELACRUZ was in the scope of his employment when the accident occurred.

44. That on June 6, 2013, West 177th Street and Fort Washington Avenue in the County of New York, City and State of New York were public thoroughfares.

45. That on June 6, 2013, at the aforesaid location the JOHN DOE #1 and JOHN DOE #2 operated the vehicle at together.

46. That on June 6, 2013 at the aforesaid location, the Defendants JOHN DOE#1 and JOHN DOE #2 controlled the vehicle together.

47. That on June 6, 2013, Plaintiff NAZARENA LORA was a lawful pedestrian at the above-mentioned location.

48. That on June 6, 2013 at the aforementioned location, the motor vehicle owned by ERVIN LLOYD and came into contact with the Plaintiff NAZARENA LORA at the above-mentioned location.

49. That on June 6, 2013 at the aforementioned location, the motor vehicle owned by ERVIN LLOYD and operated by the Defendants, JOHN DOE #1 and JOHN DOE #2 came into contact with the Plaintiff, NAZARENA LORA.

50. That on June 6, 2013 at the aforementioned location, the motor vehicle owned by ERVIN LLOYD and operated by the Defendant, JOHN DOE #1 and Defendant EMMANUEL DELACRUZ came into contact with the Plaintiff, NAZARENA LORA.

51. That on June 6, 2013 at the aforementioned location, the motor vehicle owned by ERVIN LLOYD and controlled by the Defendant, JOHN DOE #1 and Defendant EMMANUEL DELACRUZ came into contact with the Plaintiff, NAZARENA LORA.

52. That the aforesaid vehicle came into contact with the Plaintiff, NAZARENA LORA.

53. That as a result of the aforesaid contact, Plaintiff NAZARENA LORA was injured.

54. That the above-stated occurrence and the results thereof were in no way due to any negligence on the part of the Plaintiff contributing thereto, but were caused by the joint, several and/or concurrent negligence of the Defendants and/or said Defendants' agents, servants, employees and/or licensees in the ownership, operation, management, maintenance and control of their said motor vehicle.

55. Defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT was careless, reckless and negligent in the employment, hiring, training and supervising of its employees and specifically, JOHN DOE#2; in the control and operation of aforesaid vehicle and Defendants were otherwise negligent, careless and reckless under the circumstances then and there prevailing.

56. Defendant JOHN DOE #2 a name meant to be fictitious was careless, reckless and negligent in the control, observation, operation of the aforesaid vehicle, intervening in the operation and control of the vehicle, in attempting to operate and control the vehicle; being careless, reckless and negligent in performing his duties and tasks as a police officer, in negligently intervening and causing the accident.

57. Defendant **EMMANUEL DELACRUZ**, careless, reckless and negligent in the control, observation, operation of the aforesaid vehicle, intervening in the operation and control of the vehicle, in attempting to operate and control the vehicle; being careless, reckless and negligent in performing his duties and tasks as a police officer, in negligently intervening and causing the accident.

58. That Plaintiff NAZARENA LORA sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York and loss greater than basic economic loss as defined by § 5104 of the Insurance Law of the State of New York.

59. That this action falls within one or more of the exceptions set forth in CPLR § 1602.

60. That by reason of the foregoing, Plaintiff NAZARENA LORA was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**WHEREFORE**, Plaintiff(s) demand(s) judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, NY  
May 15, 2014

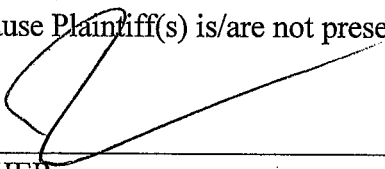
  
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DAVID ASCHER, ESQ.  
Attorney for NAZARENA LORA



### ATTORNEY'S VERIFICATION

David M. Ascher, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at Law Office of David Ascher, attorneys of record for Plaintiff(s), **NAZARENA LORA** I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.



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DAVID ASCHER